

to the Court that Defendant was not arguing that Plaintiff must name a specific individual, but rather must allege sufficient facts to show that there were employees doing substantially similar work under substantially similar conditions who were paid more.

Here, Plaintiff was hired as the vice president of human resources. (Comp. ¶ 7.) “Eventually, Defendant would rely on Plaintiff for human resources, accounting, corporate compliance, and information technologies (IT).” (Comp. ¶13.) Plaintiff alleged that she “was simultaneously performing three jobs” and “was paid significantly less than male employees who had significantly less responsibility.” (Comp. ¶¶ 73-74.)

The Court finds that Plaintiff has not alleged facts showing that there was an employee doing substantially similar work under substantially similar conditions who was paid more than Plaintiff. The allegation that Plaintiff was paid less than male employees with significantly less responsibility is insufficient. Having responsibility is not the same as doing substantially similar work. **The demurrer to Cause of Action Five is sustained.** This is the first challenge to this cause of action and Plaintiff has requested leave to amend. Therefore, Plaintiff is given leave to amend.

Plaintiff must file and serve an amended pleading withing 15 days of service of notice of entry of this order.

7. 9:00 AM CASE NUMBER: C25-01808

CASE NAME: HARRY KARRIS VS. JILL CHERNE

***HEARING ON MOTION IN RE: QUASH SUBPOENAS**

FILED BY:

TENTATIVE RULING:

The unopposed motion of Betty Jean Harris to quash six subpoenae purportedly served on her behalf, copies of which are attached to the Declaration of Tanner D. Brink in Support of Motion to Quash, filed November 12, 2025 in this action, is continued for the purpose of requiring counsel for Ms. Betty Jean Harris, counsel for Harry Karris, and counsel for Defendant Jill Elizabeth Cherne to meet and confer regarding this issue.

Counsel Brink is also ordered to serve a copy of the Motion to Quash and all supporting papers on Defendant Jill Elizabeth Cherne.

The hearing is continued to Friday, June 26, 2026 at 9:00 a.m. in Department 32. The parties are ordered to file a joint statement regarding their meet and confer efforts nine (9) court days prior to the hearing on June 26, 2026.